



وزارت خارجہ امور

مراعات یافتہ ہدایات

PRIVILEGED INSTRUCTIONS

Ministry of Foreign Affairs
ISLAMIC REPUBLIC OF PAKISTAN



MINISTRY OF FOREIGN
AFFAIRS
GOVERNMENT OF PAKISTAN

وزارت خارجہ
افو اس
حکومت پاکستان

Privileged Instructions

Fundamental Principles:

- Jammu and Kashmir is an inalienable part of Pakistani territory.
- Resist Indian hegemony in the region.

Desired End State(s):

- Prevention of any form of independence, or expansion of Indian authority, in the territory of the former princely state of Jammu and Kashmir.
- Prevention of the recognition of LoC as international border.
- Withdrawal of Indian troops from Jammu and Kashmir.
- International investigation of Indian human rights abuses.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

PRIMARY GUIDANCE: Protecting Kashmiri Muslims and resisting the Indian occupation of Jammu and Kashmir is an integral part of our national identity. If not for India's refusal to hold a plebiscite in Jammu and Kashmir following Partition – in direct violation of UN Resolution 47 – Kashmiris would long ago have voted for accession to Pakistan. Due to our long-standing support for the Kashmiri cause, any concessions that would prevent Jammu and Kashmir from eventually joining Pakistan must be avoided. Pakistan does not support Kashmiri independence, and should insist that the original 1948 plebiscite, which does not include independence as an option, be the means to settle political disputes in the region. We will support the Jammu & Kashmir delegation on positions that can weaken India, but we will also continue to support the purely pro-Pakistani parties that can best protect Kashmiri interests.

We should attempt to internationalize the Jammu and Kashmir issue as much as possible by pursuing multilateral meetings with the Jammu & Kashmir delegation and India. Any Indian efforts to portray the Kashmir crisis as a domestic issue must be strongly countered. We should encourage Chinese, British, and American participation in the negotiations while ensuring that we balance any excessive American and British influence with strong Chinese support. If China becomes more neutral in Pakistani-Indian issues, our ability to resist Indian aggression would be severely limited. Even if the United States and the United Kingdom don't support our specific interests, maintaining a US-UK-Pakistan alliance on this problem will help us in the overall negotiations. Any effort to increase UN mediation should be encouraged at all times and embraced as a principal method of bringing increased pressure on the Indian government.

Chapter Issues and Principal Negotiating Positions

Chapter I: Territory

Discussion:

Despite the Jammu & Kashmiri leadership calls for increased Kashmiri autonomy, is it unclear which territories they actually represent, or to which areas India would grant autonomy. The Jammu & Kashmiri leadership has declared that they represent all of Jammu and Kashmir and the aspirations of all peoples of the old princely state, including Azad Kashmir. The party has claimed significant local support within Azad Kashmir in an attempt to legitimize its support there; but the degree of support within the Muslim communities of Kashmir remains suspect and unproven.

Our Position:

Our goal is to tie the decision on territory to a plebiscite that will show the world that Jammu and Kashmir is part of Pakistan. We will not under any circumstances allow Azad Kashmir to become part of an independent or autonomous Kashmir. We also refuse to recognize the LoC as an official border with India. We are proponents of Muslim unity and will not allow India to divide the former princely state of Jammu and Kashmir, or the Jammu & Kashmiri leadership to move the region towards the full independence that we believe they seek. A Jammu & Kashmir-led autonomous or independent region with Srinagar as the capitol would be fundamentally unstable; therefore, a plebiscite is the only viable option. Such a plebiscite need not include Aksai Chin. Our terms for a political settlement include the withdrawal of Indian troops, an end to violent repression, and the holding of a plebiscite in accordance with the 1948 UN guidelines.

Guidance:

All territorial strategies must pursue the ultimate goal of ending the Indian occupation of Jammu and Kashmir, which should rightfully have acceded to Pakistan. We should seek to persuade the Jammu & Kashmir delegation that joining Pakistan is the only realistic way to escape Indian brutality and domination. If the Jammu & Kashmir delegation and Pakistan jointly call for a plebiscite, then we can more effectively work together to end India's illegal occupation of Jammu and Kashmir. We must be firm with the Jammu & Kashmir delegation and force them to renounce any present claim to represent Azad Kashmir. If the Jammu & Kashmir delegation does not meet this essential demand, then we must work more closely with other countries to delegitimize the Jammu & Kashmiri leadership's ability to represent all Kashmiris effectively and adequately. If the Jammu & Kashmiri leadership renounces their claim to represent Azad Kashmir and include that area as part of an autonomous Jammu Kashmir, we can engage with the party on other issues, but should continue to pressure them to agree to the original 1948 plebiscite. Only once that plebiscite has been held and the entire region falls under Pakistani control, can the Jammu & Kashmiri people be given the same rights as other Pakistani political parties to represent all Kashmiris.

We must oppose the recent Indian decision to split occupied Jammu and Kashmir into multiple states and resist any Jammu & Kashmir-led effort to form an autonomous region centered around Srinagar. We see these scenarios as likely to split the Muslim population and make it more difficult for Jammu and Kashmir to become part of Pakistan in the future. In our talks with the United States, Britain, China, and Russia, we should emphasize that an autonomous region in Jammu and Kashmir would not be self-sustainable and could become a breeding ground for terrorism. In our talks with China, emphasize that such an autonomous region could threaten Chinese-controlled Kashmir and could pose a security risk to the Karakorum Highway that connects Azad Kashmir with China and forms a vital link for it to Indian Ocean ports. Ultimately, we need to convince the international community that territorial questions cannot be decided without the withdrawal of Indian troops from Jammu and

Kashmir and the holding of a plebiscite. Following such a plebiscite, options for greater autonomy in Jammu and Kashmir under Pakistani oversight could be discussed.

Red Line:

No agreement in which all of Jammu and Kashmir is not a part of Pakistan.

Chapter II: Jammu and Kashmir Governance

Discussion:

Under the UN Resolution 47, Pakistan and India were supposed to implement a plebiscite in the princely state of Jammu and Kashmir so that Kashmiris could vote on accession to Pakistan or India. This plebiscite has never been held due to India's refusal to withdraw its troops from what would rightfully be Pakistani territory. We continue to support the plebiscite for Jammu and Kashmir as long as India fulfills the preconditions of the UN Resolution.

India has revoked Article 370, thereby allowing India to rule by decree in the areas it still occupies. Especially since the rebuke of the recent local elections, PM Nodi's ability to hold the region and ensure peace and stability completely depends on the Indian army, and whether police forces loyal to the BJP can successfully control terrorism and quell militant groups.

Our Position:

Pakistan supports a plebiscite for all of the historical princely state of Jammu and Kashmir, including Azad Kashmir, so long as independence is not an option. While Pakistan supports an end to the harsh security measures taken by Indian security forces, Pakistan vigorously opposes Article 370 as a solution to these problems. Article 370 states that India can still pass laws related to defense in Jammu and Kashmir, which means India can maintain troops, continue harsh security measures at its discretion, and continue interfering with Kashmiri governance. We should emphasize security concerns in the region and make it clear that the Jammu & Kashmiri leadership, can neither resist Indian encroachment nor contain terrorism.

Guidance:

The return of autonomy under Indian rule through Jammu & Kashmiri leadership efforts is not an acceptable solution for ending hostilities. We should argue that neither India nor the Jammu & Kashmiri leadership have shown themselves capable of adequately representing, respecting or protecting Kashmiri human rights. Only a plebiscite based on the principle of accession could ensure that the Kashmir issue is finally settled, and that Kashmiris' rights are respected. Actual Kashmiri autonomy centered on the Kashmir Valley would only encourage our own separatist groups and could lead to international support for recognition of the LoC as the official boundary between Pakistan and India in Jammu and Kashmir.

We should promote proposals such as a combination platform that includes the demilitarization of Jammu and Kashmir and joint governance over Jammu and Kashmir between India and Pakistan until a decisive referendum, in the form of the 1948 UN-mandated plebiscite, is held. We support further autonomy for Jammu and Kashmir, under Pakistani sovereignty, as long as it does not lead to recognition of the LoC as an international boundary or the loss of Azad Kashmir.

Negotiations with the Jammu & Kashmir delegation should focus on promises of increased autonomy within Pakistan, not within an independent Jammu Kashmir. In our talks with Russia, we will emphasize that an independent Jammu and Kashmir would serve as inspiration for Russia's own

Muslim separatist groups. Emphasize to the United States and the United Kingdom that an independent Jammu and Kashmir could become a failed state and a breeding ground for terrorism.

Red Line:

No agreement in which all of Jammu and Kashmir is not a part of Pakistan.

Chapter III: Human Rights and Displaced Persons

Discussion:

Indian police have used torture, including electrocution and beatings, against hundreds of innocent Kashmiri civilians. Indian security forces have also used brutal tactics such as mass killings, forced disappearances and widespread extrajudicial killings of civilians. India's Armed Services Special Powers Act has enabled India to hold prisoners without trial for up to two years without even presenting charges.

The history of India's counterterrorism measures in Jammu and Kashmir has led the Jammu & Kashmir delegation to call for a UN investigation into human rights violations in Jammu and Kashmir. This includes investigations into India's arrests of local Kashmiri political party members and the targeted killings in the name of counter-terrorism actions. A UN investigation could further delegitimize India's occupation of Jammu and Kashmir. India has justified its harsh crackdown by pointing to the presence of non-Kashmiris within terrorist groups in Jammu and Kashmir. Pakistan and the JKLF have criticized India on a number of occasions for committing human rights abuses in Jammu and Kashmir.

The presence of internally displaced persons (IDPs) in Azad Kashmir and other parts of Pakistan strains our resources. Over and above, what was agreed in earlier talks with India, we also need international aid to provide for these IDPs as long as this aid does not require us to make any concessions with regards to our Kashmir policy. India or the Jammu & Kashmiri leadership could solidify any claims over Jammu and Kashmir if either side was responsible for the distribution of humanitarian aid to IDPs in the region.

Our Position:

Pakistan will support a UN investigation of human rights violations that is limited to actions taken by Indian security forces. The United States, United Kingdom, and other international actors support investigations, especially into operations conducted by militant groups. We will oppose any such initiative as UN investigators might focus on the role of groups such as Lashkar-e-Taiba or Jaish-e-Muhammad in the fighting and attempt to blame Pakistan.

Regardless if there is or is not an agreement concerning Jammu and Kashmir, there must be a resolution of the return and repatriation of recently displaced populations.

Guidance:

We will have to walk a delicate line in our negotiations over human rights investigations and displaced persons. Our goal is for such investigations and assistance to discredit India without bringing light to our support for freedom fighters in Jammu and Kashmir.

Pakistan must use any discussion on human rights as an opportunity to expose the cruelty that India has employed to pacify the Kashmiri people. This international forum is the opportunity to expose India's contradiction as a secular state that restricts Kashmiri rights of freedom of speech and self-determination by jailing and silencing dissidents. We should remind the United States, United Kingdom and UN Representative of these abuses and the negative impacts on the peace process.

Regarding displaced persons, these populations are unsupportable within our nation and in Azad Kashmir. However, these people will be unwilling to return to a region that remains under constant crisis, so short of a peace agreement there must be a resolution on local control and governance that might allow a certain level of internal stability.